

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

----- X
CHERISH RIVERS,

Plaintiff,

-against-

CITY OF NEW YORK, NYPD POLICE DETECTIVE
BRIAN ZUPO, SHIELD NO. 3741, AND NYPD
OFFICERS JOHN/JANE DOES NUMBERS ONE
THROUGH TEN,

Defendants.
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SUMMONS

Index No.:

The Basis of Venue is:
Location of Incident

Plaintiff designates King's
County as the place of trial.

To the above named Defendants:

You are hereby summoned to answer the Verified Complaint in this action, and to serve a copy of your Verified Answer to the Verified Complaint, or, if the Verified Complaint is not served with this Summons, to serve a notice of appearance on the Plaintiff's attorneys within twenty days after the service of this Summons, exclusive of the day of service, where service is made by delivery upon you personally within the state, or, within 30 days after completion of service where service is made in any other manner. In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

DATED: New York, New York
January 18, 2023

Yours, etc.



Omar T. Russo, Esq.
Shulman-Hill, PLLC
Attorneys for Plaintiff
1 State Street Plaza
15th Floor
New York, New York 10004
(212) 203-1090

TO: DETECTIVE BRIAN ZUPO, 70th Detective Squad, 154 Lawrence Avenue, Brooklyn, NY
11230

CITY OF NEW YORK, 100 Church Street, New York, New York, 10007

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INDEX NO.:

VERIFIED COMPLAINT

JURY TRIAL DEMANDED

Plaintiff Cherish Rivers, by his attorneys, Shulman and Hill, PLLC, as and for his Verified Complaint herein, alleges upon information and belief as follows:

PRELIMINARY STATEMENT

1. This is a civil rights action to recover money damages arising out of defendants' violation of Plaintiff's rights as secured by the Civil Rights Act, 42 U.S.C. Sections 1983 and 1988, and of rights secured by the Fourth, Fifth and Fourteenth Amendments to the United States Constitution. On February 8, 2022, at approximately 6:00 a.m., Plaintiff was present in the vicinity of 9 Argyle Road, County of Kings, State of New York, was subject to an unlawful arrest, and detention by defendant officers. Plaintiff was deprived of his constitutional, common law, and statutory rights when the individual defendants unlawfully stopped, detained, passed along false accusations to prosecuting attorneys and engaged in the malicious prosecution of Plaintiff, in violation of the common law and the Fourth, Fifth, and Fourteenth Amendments of the United States Constitution.

PARTIES

2. Plaintiff Cherish Rivers is a resident of the state of New York.
3. New York City Police Detective Brian Zupo, Shield No. 3741 is and was at all times relevant herein an Officer with the New York City Police Department.
4. New York City Police Detective Brian Zupo, Shield No. 3741 is being sued in their individual and official capacity.

5. Currently and at all times relevant herein, New York City Police Detective Brian Zupo, Shield No. 3741 was assigned to the 70th detective squad of the NYPD.
6. New York City Police Officers John Does #1-10 are and were at all times relevant herein officers, employees, and agents of the New York City Police Department.
7. Police Officers John Does #1-10 are being sued in their individual and official capacities.
8. Currently and at all times relevant herein, New York City Police Officers John Does #1-10 were assigned to the 70th precinct of the NYPD.
9. At all times relevant herein, the individual defendants were acting under color of state law in the course and scope of their duties and functions as agents, servants, employees and officers of the New York City Police Department, and otherwise performed and engaged in conduct incidental to the performance of their lawful functions in the course of their duties. They were acting for and on behalf of the New York City Police Department at all times relevant herein, with the power and authority vested in them as officers, agents and employees of the New York City Police Department and incidental to the lawful pursuit of their duties as officers, employees and agents of the New York City Police Department.
10. The City of New York is a municipal entity created and authorized under the laws of the State of New York. It is authorized by law to maintain a police department which acts as its agent in the area of law enforcement and for which it is ultimately responsible. The City of New York assumes the risks incidental to the maintenance of a police force and the employment of police officers as said risks attach to the public consumers of the services provided by the New York City Police Department.
11. Plaintiff has sustained damages in an amount in excess of the jurisdictional limits of all the lower Courts of the State of New York.

STATEMENT OF FACTS

12. On February 8, 2022, at approximately 6:00 a.m., Plaintiff was present in the vicinity of 9 Argule Road, County of Kings, State of New York, when the defendant police officers falsely arrested Plaintiff.
13. Plaintiff was lawfully present within his family friend's home when officers forcefully entered the home, immediately placing him under arrest.
14. Plaintiff did not, at any point, resist arrest.
15. The defendant officers aggressively and forcefully detained Plaintiff, causing fear along with pain and discomfort to his person, placing him tightly in metal handcuffs.

16. At no time relevant herein did Plaintiff commit a crime or violate the law in any way, nor did the police officers have an objective basis to accuse Plaintiff of committing a crime or violating the law in any way.
17. At no point did defendant officers recover any drugs, weapons, graffiti instruments, or other illegal contraband from Plaintiff or from a location that was in Plaintiff's possession, custody, or control.
18. Nevertheless, Plaintiff was unlawfully arrested and handcuffed by defendant officers without legal justification or probable cause.
19. Plaintiff was placed in the back on an NYPD vehicle and transported to the 70th Precinct against his will.
20. Upon his arrival to the 70th Precinct, Plaintiff was unlawfully strip searched, fingerprinted, photographed, and placed in a holding cell.
21. After approximately 12 hours, Plaintiff was transported to Kings County Central Booking, where he was again processed and placed in a holding cell for approximately 14 hours.
22. While Plaintiff was in custody, the defendant police officers provided the Kings County District Attorney's Office with the false, misleading and/or incomplete information that Plaintiff committed a crime.
23. Specifically, the defendant police officers falsely stated to the Kings County District Attorney's Office that Plaintiff committed criminal possession of a firearm and other related charges.
24. Plaintiff was never put in a lineup, nor did he confess to any crimes.
25. After approximately 26 hours in custody, Plaintiff was arraigned in criminal court, and based on the defendant officers' false representations his bail was set at, upon information and belief, \$90,000.
26. Plaintiff was remanded to Rikers Island.
27. While in custody at the Eric M. Taylor Center, on Rikers Island, Plaintiff was attacked during intake, during which he lost hair from his head and sustained abrasions to his face.
28. Plaintiff also has epileptic seizures that he is proscribed medication for, and that was not given to him while he was at Rikres, causing further injury to Plaintiff.
29. Plaintiff was unable to afford bail, and spent four (4) days in custody before he was released on his CPL 180.80 date.

30. A Grand Jury failed to indict the Plaintiff, and The Kings County District Attorneys Office released the Plaintiff from unlawful custody.
31. An indictment was never filed against Plaintiff in this case.
32. All criminal charges against Plaintiff were dismissed and sealed on June 16, 2022.
33. Plaintiff suffered continuing significant injury to his hand and wrist from the actions of defendant officers complained of above.
34. Plaintiff continues to suffer emotional trauma and distress from the actions of defendant officers complained of above.
35. Some of the police officer defendants observed the violation of Plaintiff's rights under the Constitution of the United States and New York State Law and did nothing to prevent their fellow officers from unjustifiably assaulting, battering, and using excessive force against Plaintiff.
36. The unlawful assault, battery, and use of excessive force by the individually named defendants caused Plaintiff to sustain physical, psychological and emotional trauma.

FIRST CAUSE OF ACTION
Unlawful Stop, Question, and Search

37. The Plaintiff repeats and realleges the foregoing paragraphs as if the same were fully set forth at length herein.
38. The illegal approach, pursuit, stop and grab employed by defendants herein terminated Plaintiff's freedom of movement through means intentionally applied.
39. The conduct of defendants in approaching, stopping, and grabbing Plaintiff was performed under color of law and without any reasonable suspicion of criminality or other constitutionally required grounds.
40. As a direct and proximate result of such acts, defendants deprived Plaintiff of his rights under the United States Constitution.

SECOND CAUSE OF ACTION
Violation of Fourth and Fourteenth Amendment Rights:
Unlawful Seizure and Deprivation of Liberty

41. The Plaintiff repeats and realleges the foregoing paragraphs as if the same were fully set forth at length herein.
42. The individually named police officer defendants, while acting in concert and within the scope of their authority, caused Plaintiff to be seized, unlawfully searched, falsely arrested,

and falsely imprisoned, and maliciously prosecuted without reasonable suspicion and/or probable cause, in violation of Plaintiff's right to be free of an unreasonable seizure under the Fourth Amendment of the Constitution of the United States and to be free of a deprivation of liberty under the Fourteenth Amendment to the Constitution of the United States.

43. As a result of the aforementioned conduct of defendants, Plaintiff sustained injuries, including but not limited to physical, emotional and psychological injuries.

THIRD CAUSE OF ACTION

False Imprisonment

44. The Plaintiff repeats and realleges the foregoing paragraphs as if the same were fully set forth at length herein.
45. The acts and conduct of the defendants constitute false arrest and false imprisonment. Defendants intended to confine Plaintiff and, in fact, confined Plaintiff, and Plaintiff was conscious of the confinement. In addition, Plaintiff did not consent to the confinement and the confinement was not otherwise privileged.
46. As a direct and proximate result of such acts, defendants deprived Plaintiff of his rights under the United States Constitution.
47. As a result of the aforementioned conduct of defendants, Plaintiff sustained injuries, including but not limited to loss of liberty, emotional and psychological injuries.

FOURTH CAUSE OF ACTION

Failure to Intervene

48. The Plaintiff repeats, reiterates, and realleges each and every allegation contained in the foregoing paragraphs with the same force and effect as if more fully set forth at length herein.
49. The defendants that did not physically touch Plaintiff, but were present when other officers violated Plaintiff's Constitutional Rights had an affirmative duty to intervene on behalf of Plaintiff, whose constitutional rights were being violated in their presence by other officers.
50. Defendants failed to intervene to prevent the unlawful conduct described herein.
51. As a result of the foregoing, Plaintiff's suffered serious, debilitating and permanent injury, his liberty was restricted for an extended period of time, he was put in fear of his safety, his injuries worsened, he did not receive necessary medical treatment, and he was humiliated and subject to other physical constraints.
52. As a direct and proximate result of such acts, defendants deprived Plaintiff of his rights under the United States Constitution.

53. As a result of the aforementioned conduct of defendants, Plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

FIFTH CAUSE OF ACTION

Violation of Fourth And Fourteenth Amendment Rights: Denial of Right to Fair Trial/Due Process

54. The Plaintiff repeats and realleges the foregoing paragraphs as if the same were fully set forth at length herein.
55. Defendants, individually and collectively, manufactured and/or withheld false evidence and forwarded this false evidence to prosecutors in the Queens District Attorney's Office.
56. Defendants filled out false and misleading police reports and forwarded them to prosecutors in the Queens District Attorney's Office.
57. Defendants signed false and misleading criminal court affidavits and forwarded them to prosecutors in the Queens District Attorney's Office.
58. In withholding/creating false evidence against Plaintiff, and in providing/withholding information with respect thereto, Defendants violated Plaintiff's constitutional right to due process and fair trial under the Due Process Clause of the Fifth Amendment to the Constitution of the United States and to be free to deprivation of liberty under the Fourteenth Amendment to the United States Constitution.
59. As a result of the foregoing, Plaintiff sustained, inter alia, loss of the right to due process and a fair trial, loss of liberty, emotional distress, embarrassment and humiliation, and deprivation of his constitutional rights.

SIXTH CAUSE OF ACTION

Malicious Prosecution

60. The Plaintiff repeats and realleges the foregoing paragraphs as if the same were fully set forth at length herein.
61. The acts and conduct of the Defendants constitute malicious prosecution under the United States Constitution.
62. Defendants commenced and continued a criminal proceeding against Plaintiff.
63. There was actual malice and an absence of probable cause for the criminal proceeding against Plaintiff and for each of the charges for which they were prosecuted.
64. The prosecution and criminal proceedings terminated in Plaintiff's favor on the aforementioned dates.

JURY DEMAND

65. Plaintiff hereby demands trial by jury of all issues properly triable thereby.

PRAYER FOR RELIEF

WHEREFORE, Plaintiff CHERISH RIVERS demands judgment against the defendants on each cause of action in amounts to be determined upon the trial of this action which exceeds the jurisdiction of lower courts, inclusive of punitive damages and attorneys' fees inclusive of costs and disbursements of this action, interest and such other relief as is appropriate under the law. That the Plaintiff recover the cost of the suit herein, including reasonable attorney's fees pursuant to 42 U.S.C. § 1988.

Dated: New York, New York
January 18, 2023

By: 
Omar T. Russo, Esq.
Shulman-Hill, PLLC
Attorneys for Plaintiff
1 State Street Plaza
15th Floor
New York, New York 10004
(212) 203-1090

TO: DETECTIVE BRIAN ZUPO, 70th Detective Squad, 154 Lawrence Avenue, Brooklyn, NY
11230

CITY OF NEW YORK, 100 Church Street, New York, New York, 10007

ATTORNEY'S VERIFICATION

OMAR RUSSO, an attorney duly admitted to practice before the Courts of the State of New York, affirms the following to be true under the penalties of perjury:

I am an associate of the law firm of **SHULMAN-HILL PLLC**, I have read the annexed **VERIFIED COMPLAINT** and know the contents thereof, and the same are true to my knowledge, except those matters therein which are stated to be alleged upon information and belief, and as to those matters I believe them to be true. My belief, as to those matters therein not stated upon knowledge, is based upon facts, records, and other pertinent information contained in my files. The reason this verification is made by me and not Plaintiff is because Plaintiff does not reside in the county wherein I maintain my office.

DATED: New York, New York
January 18, 2023


OMAR RUSSO